

CV-26-000923 WELLS FARGO BANK NA vs MARTINEZ, AARON – Plaintiff's Motion to Deem Requests for Admissions Admitted and of Nonappearance – GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On May 28, 2026, Plaintiff submitted a motion to deem requests for admissions admitted and for nonappearance. Plaintiff's notice of motion states that Plaintiff submits the motion on the moving papers pursuant to California Rule of Court 3.1304(c) and will not appear at the hearing in open court. The motion is unopposed. "If a party to whom requests for admission are directed fails to serve a timely response . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted[.]" (Code Civ. Proc., § 2033.280.) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280(c).) Plaintiff's declaration states that Plaintiff propounded Plaintiff's Requests for Admissions, Set One, on Defendant and received no response. Plaintiff requests that the genuineness of any documents and the truth of any matters specified be deemed admitted. Pursuant to Code of Civil Procedure section 2033.280, Plaintiff's unopposed motion is GRANTED. The Court intends to sign the proposed order Plaintiff submitted in connection with its motion.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 5531ac00dfdcf3f3f5d60310125255acadecdc2a0d7fc75331ce61476d4b877

CV-26-000923 – WELLS FARGO BANK NA vs MARTINEZ, AARON – Plaintiff's Motion to Deem Requests for Admissions Admitted and of Nonappearance – GRANTED, and unopposed.

On May 28, 2026, Plaintiff submitted a motion to deem requests for admissions admitted and for nonappearance. Plaintiff's notice of motion states that Plaintiff submits the motion on the moving papers pursuant to California Rule of Court 3.1304(c) and will not appear at the hearing in open court. The motion is unopposed.

"If a party to whom requests for admission are directed fails to serve a timely response . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted[.]" (Code Civ. Proc., § 2033.280.) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280(c).)

Plaintiff's declaration states that Plaintiff propounded Plaintiff's Requests for Admissions, Set One, on Defendant and received no response. Plaintiff requests that the genuineness of any documents and the truth of any matters specified be deemed admitted.

Pursuant to Code of Civil Procedure section 2033.280, Plaintiff's unopposed motion is GRANTED. The Court intends to sign the proposed order Plaintiff submitted in connection with its motion.